Judiciary

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Introduction

- ✓ **Supreme Court** (Topmost Court)
- ✓ **High Courts** (Each for states/groups of states)
- ✓ **Subordinate Courts** (Below High Courts)
  - District Courts
  - Sessions Courts
  - Magistrate Courts
  - Civil Courts
  - Family Courts, etc.

Adopted from

- ✓ **Government of India Act, 1935**

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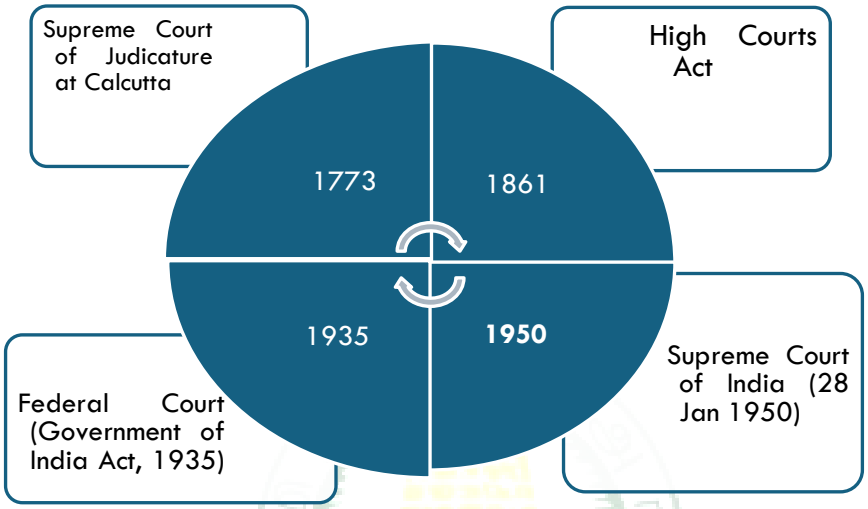
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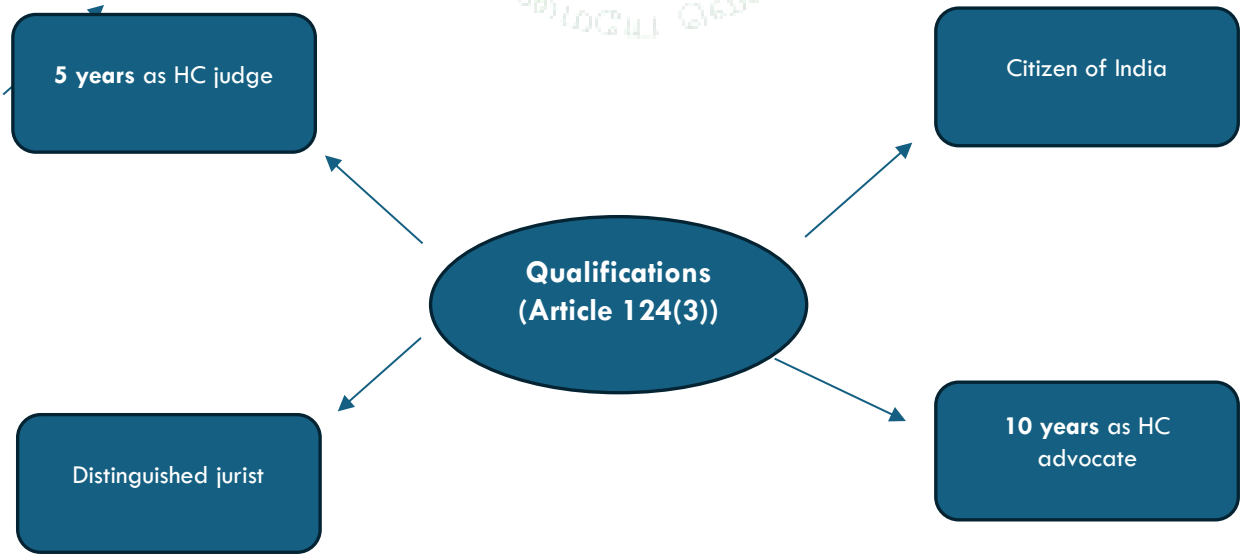
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Supreme Court

Constitutional Provisions

Articles 124-147 (Part V):
Organisation, Independence, Jurisdiction, Powers, Procedures





Salaries & Allowances

- Fixed by Parliament
- Cannot be reduced except during Financial Emergency
- Composition:Originally 8 judges (including Chief Justice)
- **Now: 34 Judges** (including CJI)
- **Article 124**: Parliament can change strength

Article 126: Acting Chief Justice

- **Article 127**: Ad hoc Judges (HC Judge to SC temporarily)
- **Article 128**: Re-appointment of Retired Judges

Removal

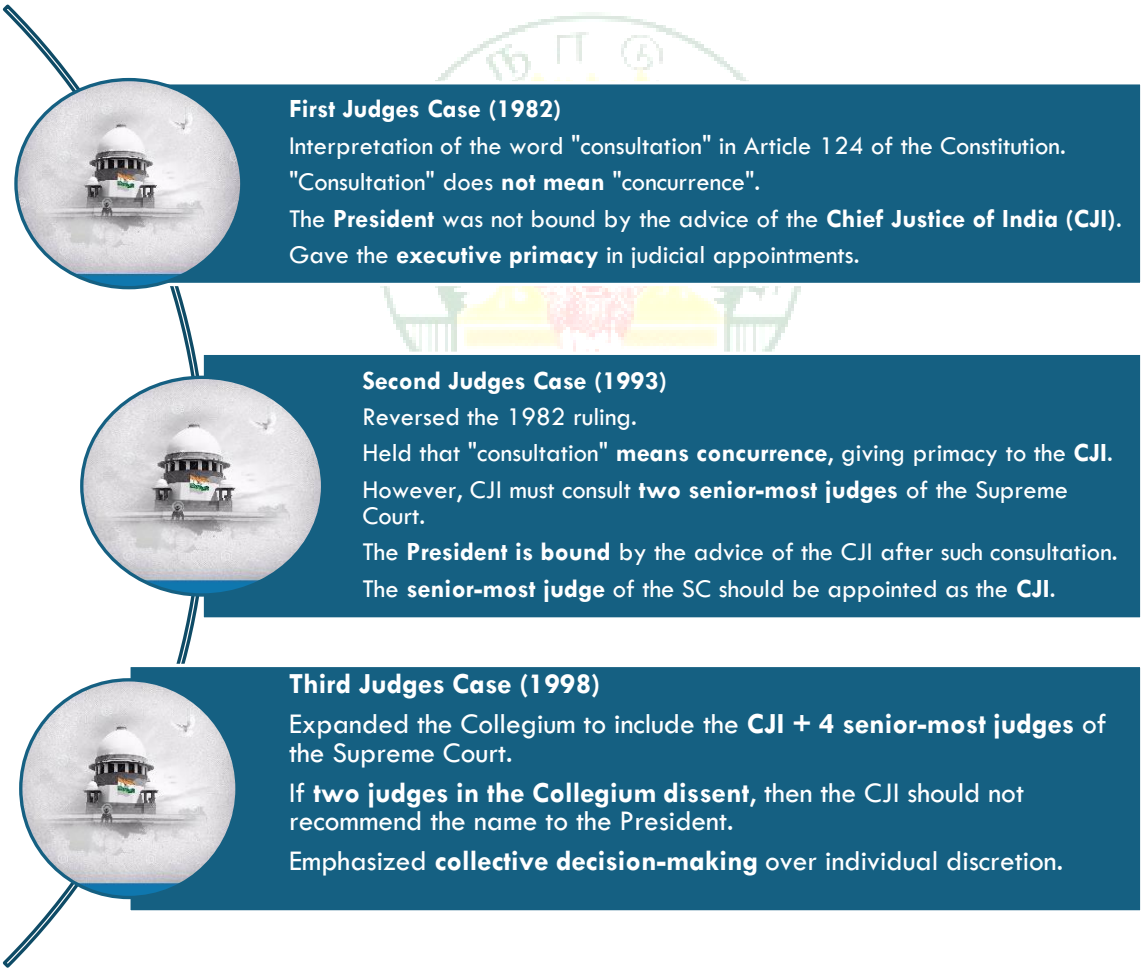
Judges Enquiry Act, 1968:

- ✓ 100 LS / 50 RS members move notice
- ✓ 3-member Inquiry Committee
- ✓ Special Majority in both Houses
- ✓ Presidential order

Grounds: **Misbehaviour or Incapacity**

Jurisdiction & Powers	
	Original Jurisdiction (Art 131): Centre vs State disputes
	Appellate Jurisdiction (Arts 132, 133, 134): Constitutional, Civil, Criminal appeals
	Special Leave (Art 136): Appeal from any tribunal/court
	Advisory Jurisdiction (Art 143): President seeks advice
	Writ Jurisdiction (Art 32): Habeas Corpus, Mandamus, Certiorari, Prohibition, Quo Warranto
	Court of Record (Art 129): Punish for contempt
	Judicial Review: Review government actions

Evolution of Collegium System



Supreme Court

- Jurisdiction
  - Original
  - Writ
  - Appellate
    - Civil
    - Criminal
    - Constitutional
    - Special Leave Petition(Article 136)
  - Advisory
- Court of Record
  - Contempt Powers
- Contempt of Court
  - Civil Contempt
  - Criminal Contempt
  - Issues with Law

Disputes between:
- ✓ Government of India **vs** one/more States
- ✓ Government of India + State(s) **vs** State(s).
- ✓ Two/more States

- ✓ Article 32 - Directly approach SC for violation of **Fundamental Rights**.
- ✓ **Writs**: Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto

President can seek SC's advice on:
- ✓ Questions of law/public importance
- ✓ Pre-Constitution treaties, etc.

Constitutional Provisions:
- ✓ Article 129 (Supreme Court)
- ✓ Article 215 (High Courts)
- ✓ Contempt of Courts Act, 1971 (Section 10)

High Court in India

Aspect	Details
Constitutional Provision	One High Court per state (Art. 214); Parliament can establish common HC for 2+ states (Art. 231); Can alter jurisdiction over Union Territories
Organization	Number of judges decided by **President,** not by Parliament
Appointment of Judges	By **President;** CJ of HC in consultation with **CJI + State Governor(s);** Other judges – CJI consults **2 senior-most SC judges** (3rd Judges Case)
Qualifications	- Indian citizen - 10 years as judicial officer in India **OR** - 10 years as advocate in High Court
Tenure	Till **62 years** of age; Can resign to President; Can be removed by President on Parliament's recommendation; Vacates if elevated or transferred
Removal Process	Same as **SC judges;** through **Parliamentary impeachment**
Salary & Allowances	Fixed by **Parliament;** Not altered post-appointment (except during financial emergency); Salary from **State Fund,** Pension from **Union Fund**
Transfer of Judges	By **President,** after **CJI consultation;** As per 3rd Judges Case: CJI consults **4 SC judges + CJs of both HCs**
Additional & Acting Judges	Appointed by President; Max **2 years;** For arrears, temporary increase in cases, or absence of judge; Can't continue after 62 years
Independence Safeguards	- Secure tenure and appointment - Fixed service conditions - Expenses from Consolidated Fund - post-retirement practice banned (except SC & HCs) - Power to punish for contempt - Administrative freedom - Constitutional jurisdiction can't be curtailed

Subordinate Courts in India

Aspect	Details
⚖️ **Position in Judiciary**	🟢 **Lowest tier** in the **Indian judicial hierarchy,** functioning **below the High Court** at the district and state level.
📜 **Constitutional Articles**	🟧 **Articles 233 to 237** in **Part VI** of the Constitution govern the appointment, control, and structure of subordinate courts.
👨‍⚖️ **Appointment of District Judges**	✅ Under **Article 233**• Appointed by the **Governor**• After **consultation with the High Court**
📋 **Qualifications (District Judges)**	• Not in government service• Advocate or pleader with **minimum 7 years** experience• Recommended by the High Court (**Article 233**)
👩‍⚖️ **Appointment of Other Judges**	✅ Under **Article 234**• Appointed by **Governor**• In consultation with **State Public Service Commission** and the **High Court**
🛡️ **Control Over Subordinate Courts**	✅ Vested in the **High Court** of the respective state under **Article 235**
🏛️ **Judicial Structure**	🟥 **Criminal Courts:**• Sessions Judge (District level)• Chief Judicial Magistrate• Judicial Magistrate (First & Second Class) 🟦 **Civil Courts:**• District Judge• Subordinate Judge• Munsiff Court
⚖️ **Jurisdiction & Powers**	✅ Sessions Judge: Original & appellate jurisdiction ✅ Can impose **life sentence or death penalty** (death sentence needs High Court confirmation)
State's Role in Structure	✅ **Article 236** empowers states to define nomenclature, jurisdiction, and classification of subordinate judiciary

Aspect	Details
Postings & Promotions	✅ Controlled by High Courts under **Article 236**
Service Conditions & Retirement	✅ **Article 237**: Provisions may be extended for uniformity with higher judiciary



Judicial Activism

Judicial activism is a judicial philosophy where judges use their personal views or social conscience to guide decisions, often expanding or reinterpreting laws beyond strict constitutional boundaries.

Aspect	Description	Example Case	Relevant Article
Constitutional Morality	Courts may uphold moral principles that evolve beyond written law.	**Naz Foundation Case (2009)** – Decriminalized homosexuality by striking down Section 377 IPC.	N/A
Filling Executive Gaps	Courts act when the executive or legislature is unwilling to take action.	**Sabarimala Case (2018)** – Allowed women to enter the temple, overriding religious restrictions.	N/A
Protecting Fundamental Rights	Courts protect individual freedoms when they feel these rights are violated.	**Triple Talaq Case (2017)** – Banned Triple Talaq, which violated women's rights.	Article 21 (Right to Life)
Trusted Institution	Judiciary remains an impartial body, trusted by the people for justice.	**Whistle Blowers Act (2014)** – SC enforced transparency in governance through Article 142.	Article 142

Important Constitutional Provisions on Judiciary (Prelims Fact)

- **Supreme Court:**
  - 📘 **Part V, Chapter IV** — Articles **124 to 147**
- **High Courts:**
  - 📘 **Part VI, Chapter V** — Articles **214 to 231**
- **Subordinate Courts:**
  - 📘 **Part VI, Chapter VI** — Articles **233 to 237**